

1                   **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2                               STATE OF OKLAHOMA

3                               2nd Session of the 60th Legislature (2026)

4   ENGROSSED SENATE  
5   BILL NO. 2118

By: Hamilton of the Senate

and

Turner of the House

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9       An Act relating to counties; amending 19 O.S. 2021,  
10      Section 180.43, as amended by Section 4, Chapter 394,  
11      O.S.L. 2024 (19 O.S. Supp. 2025, Section 180.43),  
12      which relates to county sheriff expenses; authorizing  
13      surplus funds from county sheriff commissary account  
14      to be used for certain purposes; and providing an  
15      effective date.

16   BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17       SECTION 1.       AMENDATORY       19 O.S. 2021, Section 180.43, as  
18      amended by Section 4, Chapter 394, O.S.L. 2024 (19 O.S. Supp. 2025,  
19      Section 180.43), is amended to read as follows:

20       Section 180.43.   A.   Each county sheriff may contract with any  
21      public or private entity engaged in the business of transportation  
22      of prisoners, the Department of Justice of the United States of  
23      America, the Department of Corrections, or any municipality of this  
24      state for the feeding, care, housing, and upkeep of federal, state,  
or municipal prisoners, or alien detainees incarcerated in the

1 county jail. Any funds received pursuant to said contract shall be  
2 the funds of the county where the federal, state, or municipal  
3 prisoners, or alien detainees are incarcerated and shall be  
4 deposited in the Sheriff's Service Fee Account. All purchases made  
5 pursuant to the provisions of this subsection shall be made pursuant  
6 to the purchasing procedures specified in Sections 1500 through 1507  
7 of this title, including the use of blanket purchase orders as  
8 provided for in Section 310.8 of Title 62 of the Oklahoma Statutes.  
9 The sheriff shall be permitted to expend the funds for capital  
10 expenditures. The sheriff shall be permitted to expend any funds in  
11 the Sheriff's Service Fee Account for administering expenses for  
12 salaries, training, equipment or travel.

13 The claim for said expenses shall be filed with and allowed by  
14 the board of county commissioners as other claims. The sheriff  
15 shall receive no compensation for said services. The sheriff shall  
16 file an annual report with the board of county commissioners not  
17 later than January 15 of each year. The State Auditor and Inspector  
18 shall conduct an audit of the report as on other public records of  
19 the county.

20 B. In lieu of the travel reimbursement or monthly travel  
21 allowance provided for by law, the board of county commissioners may  
22 purchase and provide for the operation, maintenance, insurance,  
23 equipping, and repair of an automobile for each county commissioner  
24 to be used in performing the duties of his office. In lieu of the

1 travel reimbursement or monthly travel allowance provided for by  
2 law, the board of county commissioners, with the concurrence of the  
3 county sheriff, may purchase and provide for the operation,  
4 maintenance, insurance, equipping, and repair of automobiles for the  
5 use of the sheriff in performing the duties of his office. Any  
6 automobile purchased pursuant to the authority granted in this  
7 section shall be purchased by competitive bids. The use of any said  
8 automobile for private or personal purposes is hereby prohibited.  
9 In any county having a population of at least three hundred fifty  
10 thousand (350,000), where it is determined by the sheriff to be more  
11 economical and advantageous to the county, the sheriff may establish  
12 a monthly automobile allowance of not more than Four Hundred Dollars  
13 (\$400.00) per month in lieu of the mileage per mile for in-county  
14 driving as authorized in this section. Any travel reimbursement  
15 other than in-county driving as provided for in this section shall  
16 be for actual and necessary expenses as provided for in the State  
17 Travel Reimbursement Act. Any person violating the provisions of  
18 this subsection, upon conviction, shall be guilty of a misdemeanor  
19 and shall be punished by a fine of not more than One Hundred Dollars  
20 (\$100.00) or by imprisonment in the county jail for not more than  
21 thirty (30) days, or by both said fine and imprisonment, and in  
22 addition thereto shall be discharged from county employment.

23 C. The State of Oklahoma hereby declares and states that the  
24 increased number of persons impersonating law enforcement officers

1 by making routine traffic stops while using unmarked cars is a  
2 threat to the public health and safety of all of the citizens of the  
3 State of Oklahoma; therefore it shall be unlawful for any county  
4 sheriff, deputy sheriff or reserve deputy sheriff to use any vehicle  
5 which is not clearly marked as a law enforcement vehicle for routine  
6 traffic enforcement except as provided in Section 12-218 of Title 47  
7 of the Oklahoma Statutes. In addition to Section 12-218 of Title 47  
8 of the Oklahoma Statutes, the peace officer operating the law  
9 enforcement vehicle for routine traffic stops shall be dressed in  
10 the official uniform including shoulder patches, badge, and any  
11 other identifying insignias normally used by the employing law  
12 enforcement agency.

13 D. Each county sheriff may operate, or contract the operation  
14 of, a commissary for the benefit of persons lawfully confined in the  
15 county jail under the custody of the county sheriff. Any funds  
16 received pursuant to said operations shall be the funds of the  
17 county where the persons are incarcerated and shall be deposited in  
18 the Sheriff's Commissary Account. The sheriff shall be permitted to  
19 expend the funds to improve or provide jail services. The sheriff  
20 shall be permitted to expend any surplus in the Sheriff's Commissary  
21 Account for administering expenses for training equipment, travel ~~or~~  
22 ~~for~~, capital expenditures, jail operations, inmate care, or other  
23 jail related expenditures. The claims for expenses shall be filed  
24 with and allowed by the board of county commissioners in the same

1 manner as other claims. The sheriff shall receive no compensation  
2 for the operation of said commissary. The sheriff shall file an  
3 annual report on any said commissary under his or her operation no  
4 later than January 15 of each year. The State Auditor and Inspector  
5 shall conduct an audit of the report in the same manner as other  
6 public records of the county.

7 E. Each county sheriff may operate, or contract the operation  
8 of, a telephone system for the benefit of persons lawfully confined  
9 in the county jail under the custody of the county sheriff. Any  
10 funds received pursuant to said operations shall be the funds of the  
11 county where the persons are incarcerated and shall be deposited in  
12 the Sheriff's Service Fee Account. Such funds may be expended  
13 according to the guidelines previously established for expenditures  
14 from the general fund. The claims for expenses shall be filed with  
15 and allowed by the board of county commissioners in the same manner  
16 as other claims.

17 SECTION 2. This act shall become effective November 1, 2026.  
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19 COMMITTEE REPORT BY: COMMITTEE ON GOVERNMENT OVERSIGHT, dated  
20 04/14/2026 - DO PASS  
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